

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

JAMES WILLIAMS JONES JR,

Respondent

) Case Number: FCS-17-352452

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent James William Jones Jr. (Father) and Other Parent Kevisha Rhodes (Mother). They share one minor child: Jase Jones (DOB: 01/03/17).
- 2) On October 28, 2025, Father filed an ex parte application seeking emergency orders for custody and visitation. The Court issued the following orders:
 - a. Temporary joint legal and joint physical custody to both parents.
 - b. Mother to have parenting time every weekend from Friday at 5:00 p.m. – Sunday at 5:00 p.m. Father to do the transportation. No third parties present during exchanges.
 - c. The parties shall not use corporal punishment.
 - d. These orders are temporary, pending the next hearing.
 - e. Matter continued to 11/05/25 to be heard along with Mother's pending DVRO request.
- 3) On November 5, 2025, the Court continued the matter to January 6, 2026 to allow Mother to serve her DVRO request on Father and to address Father's custody/visitation requests.

- 1 4) On January 6, 2026, the parties appeared at hearing and the Court ordered:
- 2 a. Mother withdrew her request for Domestic Violence Restraining Order (DVRO).
- 3 b. Father shall allow Mother to have more open and available communication with the
- 4 minor child.
- 5 c. Current custody orders shall remain in effect with the addition that Mother shall have
- 6 custody of the minor child for the entirety of Spring Break 2026. For Summer 2026,
- 7 Mother shall have minor child on weekdays and Father shall have the minor child on
- 8 weekends.
- 9 d. Mother's request for a Tier II interview of the child is granted.
- 10 e. Matter continued to April 7, 2026.
- 11 5) On February 10, 2026, Mother filed a Supplemental Declaration, which has been read and
- 12 considered by the Court.
- 13 6) On March 24, 2026, Father filed a Supplemental Declaration, which has been read and considered
- 14 by the Court.
- 15 7) On March 25, 2026, Father filed an Update Declaration, which has been read and considered by
- 16 the Court.
- 17 8) On March 27, 2026, Mother filed an ex parte application seeking emergency orders. The Court
- 18 denied Mother's request pending hearing but set the matter on shortened time for April 6, 2026
- 19 (Readiness Calendar). The Court ordered Mother to serve Father on or before April 1, 2026.
- 20 9) On April 7, 2026, the Court ordered that Mother shall have temporary sole legal and sole physical
- 21 custody of the minor child. In addition, the Court suspended Father's visitation. The Court
- 22 continued the matter to June 9, 2026 for further review.
- 23 10) On June 9, 2026, the Court ordered that Father shall have private visits with the minor child, with
- 24 no third parties present, on Sundays from 9:00 a.m. – 5:00 p.m. Exchanges were to occur at 850
- 25 Bryant Street. The Court continued the matter to August 13, 2026, for final review.

26 **B. Findings and Order**

- 27 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
- 28 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
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violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) **The parties are ordered to appear.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIA ZACK,

Petitioner

VS.

KIRIL ZACK,

Respondent

) Case Number: FDI-14-782342

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

- 1) The parties are Petitioner Julia Zack and Respondent Kiril Zack.
- 2) The matter is on calendar for Respondent's request for Family Code section 2030 attorney's fees and costs, which has been pending since 2/25/25.
- 3) On 8/4/26, Petitioner filed a Request to Reschedule Hearing asserting that Respondent produced additional financial discovery requiring time for meaningful review and analysis.
- 4) On 8/4/26, Respondent filed an oppositional Response to Petitioner's Request to Reschedule Hearing asserting that the additional financial discovery to which Respondent is referring is a 1-page document.
- 5) On 8/7/26, Respondent filed an update declaration of counsel requesting a total of \$217,232.75 in attorney's fees and costs, which Respondent asserts is approximately 70% of his California legal fees. Respondent states Petitioner has earned significantly more and spent significantly more on attorney's fees throughout the litigation.
- 6) On 8/7/26, Respondent filed an updated Income and Expense Declaration.

1 7) On 8/7/26, Petitioner filed a supplemental declaration in opposition to Respondent's request for
2 attorney's fees and costs. Petitioner disputes that a fee award under Family Code section 2030 is
3 reasonable. Petitioner alleges Respondent's current liquid assets substantially exceed Petitioner's
4 and demonstrate his ability to pay his own attorney's fees.

5 8) On 8/7/26, Petitioner filed an updated Income and Expense Declaration.

6 9) On 8/11/26, Respondent filed a supplemental declaration reiterating his need for Petitioner to
7 contribute to his attorney's fees and costs.

8 10) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GIL TAMARI,

Petitioner

VS.

LIRON NOIMAN,

Respondent

) Case Number: FDI-20-793674

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, APPOINT THE CLERK OF THE COURT
AS ELISOR TO SIGN THE REQUIRED DOCUMENTS ON BEHALF OF RESPONDENT IN ORDER
TO ENFORCE THE ORDERS OF THE COURT AND OST

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gil Tamari and Respondent Liron Noiman.
- 2) On 6/18/26, Petitioner filed an ex parte Request for Order seeking: (a) appointment of the clerk of court as elisor to execute documents necessary to divide retirement assets pursuant to a Judgment entered 6/15/21; and (b) attorney's fees and costs pursuant to Family Code section 271.
- 3) On 6/18/26, Petitioner filed a Memorandum of Points and Authorities.
- 4) On 6/18/26, counsel for Petitioner filed a declaration substantiating her request for \$7,674.01 in Family Code section 271 attorney's fees.
- 5) On 6/18/26, Petitioner filed an Income and Expense Declaration.
- 6) On 6/18/26, the Court denied Petitioner's request for emergency relief pending hearing set for 8/13/26. The Court ordered Petitioner to personally serve Respondent with all documents filed with the Request for Order (see FL-300).

1 7) There is no Proof of Service on file indicating Respondent was personally served.

2 8) Respondent did not file a Responsive Declaration.

3 **B. Findings and Order**

4 1) This matter is **CONTINUED to 10/13/26 at 9:00 AM in Dept. 403** to permit Petitioner to
5 effectuate proper service.

6 2) At least 16 Court days prior to the next hearing date, Petitioner shall serve on Respondent the (a)
7 Request for Order and supportive pleadings, (b) Continuance Order contained herein, and (c)
8 Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.

9 3) At least 9 Court days prior to the next hearing date, Respondent may file and serve a Responsive
10 Declaration.

11 4) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
12 Declaration.

13 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE CHI,

Petitioner

VS.

ARLAN TOKUGAWA,

Respondent

) Case Number: FDI-23-798517

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHOICE OF SCHOOL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michelle Chi (Mother) and Respondent Arlan Tokugawa (Father).
They share one minor child: Sora Hana Tokugawa (DOB: 10/15/21).
- 2) On May 14, 2026, Mother filed a Request for Order in which she seeks the following orders:
 - a. An order allowing her to enroll the minor child in a TK program at St. Cecilia School for the 2026-2027 academic year and continuing until the 8th grade;
 - b. Allocation of tuition and related expenses in a fair and equitable manner;
 - c. Tie-breaking authority regarding educational decision should a dispute arise; and
 - d. Any further relief the Court deems necessary and just.
- 3) On June 29, 2026, the Court conducted a “Readiness” hearing and referred the matter to FCS Mediation to occur on July 29, 2026 and set a return hearing for August 11, 2026.
- 4) On July 29, 2026, the parties participated in FCS Mediation and were unable to reach an agreement.

1 5) On July 29, 2026, Father filed a Responsive Declaration, which has been read and considered by
2 the Court.

3 6) At the prior 8/11/26 hearing, the Court continued the matter to 8/13/26.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.

9 2) The Court DENIES Mother's request for an order that she be permitted to enroll the minor child
10 at St. Cecilia School for the academic 2026-2027 school year.

11 3) The Court DENIES Mother's request for an allocation of tuition and related expenses, without
12 prejudice.

13 4) The Court DENIES Mother's request for tie-breaking authority regarding educational decisions.

14 5) The Court GRANTS Father's request for an order that the minor child, Sora Hana Tokugawa
15 (10/15/21) be permitted to attend Lafayette Elementary School for the academic 2026-2027
16 academic year and continuing until the 5th grade.

17 6) Mother shall cooperate in executing any and all documentation required to effectuate the Court's
18 orders.

19 7) Any and all prior orders, not in conflict with the orders made herein, shall remain in full force and
20 effect.

21 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELLE TAYLOR,

Petitioner

VS.

CHEICK DIARRA,

Respondent

) Case Number: FDI-24-799488

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: QUASH DEPOSITION SUBPOENAS; SANCTIONS; SEE ATTACHMENT

TENTATIVE RULING

On the Court's own motion, this matter is continued to the Family Law Discovery calendar on 9/4/26 at 1:30 PM in Dept. 405(A) (the hearing will occur in room 403). **No appearances are required on 8/13/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUAICHUN LEI,

Petitioner

VS.

NAJIAN HUANG,

Respondent

) Case Number: FDI-24-799990

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
DATE OF SEPARATION; DISPUTE TRANSACTIONS; PROCEDURAL POTECTION 730 REP

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Huaichun Lei and Respondent Najian Huang. The parties were married on March 13, 2015. They share two minor children.
- 2) On 7/11/24, Petitioner filed a Petition for Dissolution listing the date of separation as 4/1/19.
- 3) On 8/16/24, Respondent filed a Response and Request for Dissolution listing the date of separation as 7/19/24. Respondent checked item 8a. on her Response, indicating a request for spousal support orders.
- 4) On 11/14/24, Respondent filed a Request for Order seeking child custody, visitation, and child support, but not spousal support. The child support request was later transferred to Department 416 (now Department 414).
- 5) On 5/22/25, the Court made a series of orders regarding businesses owned by Petitioner, Blue Mountain Payments (BMP) and N&H Investment LLC. The Court then stayed those orders on

1 11/26/25 and recommended that Respondent consider retaining a joint 730 expert for business
2 characterization and valuation.

3 6) On 7/1/25, the Court ordered Petitioner to pay Respondent guideline child support in the amount
4 of \$4,405.00 retroactive to 12/01/24 and payable on the first day of the based on Petitioner having
5 a 25% timeshare with the children.

6 7) On 2/24/26, Respondent filed Request for Order in which she seeks spousal support, attorney fees
7 and other miscellaneous relief. In particular, she seeks 1) a determination as to the date of
8 separation; 2) orders regarding disputed transactions, payroll and personal expenses; 3)
9 “procedural protections” regarding a section 730 expert report; and 4) \$10,000 in attorney’s fees
10 and costs. Finally, Respondent contends that Petitioner owes \$25,251.32 in child support arrears
11 but does not explicitly request any orders regarding the alleged arrears.

12 8) On 02/24/26, Respondent filed an Income and Expense Declaration in which she states the
13 following:

14 a. Income: \$10,000.00 per month.

15 b. Tax Filing Status: Married, filing separately.

16 c. 2 minor children (75% timeshare to Mother)

17 d. Health Insurance Premiums: \$100.00/month

18 e. Property Tax: \$1000.00/month (no mortgage payment is listed, nor is there any entry for
19 interest.)

20 f. Total Expenses: \$9600.00

21 g. Attorney Fees Paid: Section was left blank.

22 h. Daycare: \$1000.00/month

23 9) On 3/13/26, Petitioner filed Responsive Declaration opposing Respondent’s requested orders.

24 Petitioner asserts that Respondent has substantial monthly income and that his own ability to pay
25 spousal support is limited, as the current child support order is based on inflated income, and he is
26 paying \$1,100 in arrears in addition to \$4,400 in ongoing support. Petitioner contends there is no
27 income disparity warranting attorney’s fees and costs. He requests the Court reserve jurisdiction
28 over the date of separation, deny Respondent’s remaining requests as vague and unsupported, and
29 award \$5,000 in sanctions under Family Code section 271.

1 10) On 03/13/26, Petitioner filed an Income and Expense Declaration in which he states the
2 following:

3 a. Income:

4 i. Wages: \$5,500.00 per month.

5 ii. IHHS: \$2580.81

6 iii. Rental Income: \$385.52

7 iv. Self-Employed: \$274.30 (However, the Court thoroughly reviewed his P/L for
8 Blue Mountain Payments for 2025 show his profits less expenses totaled
9 \$355,128.12 for the 12-month period.) Therefore, it appears that his true
10 monthly gris \$29,594.01.

11 v. N&H Investment LLC: \$4,626.19 per month.

12 b. Tax Filing Status: Married, filing separately.

13 c. 2 minor children (75% timeshare to Mother)

14 d. Health Insurance Premiums: \$100.00/month

15 e. Property Tax: \$1500.00/month (no mortgage payment is listed, nor is there any entry for
16 interest.)

17 f. Total Expenses: \$8,775.00

18 g. Attorney Fees Paid: \$71,312.50

19 h. Daycare: \$1000.00/month

20 11) On 3/16/26, Respondent filed a declaration with an attachment purportedly demonstrating that
21 Petitioner's claims of limited income are inaccurate and misleading. The declaration attaches
22 numerous financial documents.

23 12) On 3/19/26, Petitioner filed an objection to Respondent's 3/16/26 declaration on the basis that it
24 introduces new evidence on reply. Petitioner contends that Respondent's analysis of his income is
25 flawed and reiterates his request for section 271 sanctions against Respondent on the basis that
26 she has filed multiple requests for orders as a procedural tactic designed to delay proceedings and
27 increase Petitioner's attorney fees.

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1 13) On 3/23/26, Respondent filed a declaration attaching further financial information meant to
2 demonstrate Petitioner's purported ability to pay temporary spousal support and need based
3 attorney's fees.

4 14) On 3/24/26, Petitioner filed an objection to Respondent's 3/23/26 declaration asserting it is
5 untimely.

6 15) On 4/27/26, Respondent filed a declaration with additional information regarding Petitioner's
7 finances.

8 16) At the prior 5/7/26 hearing, the Court continued the matter to 7/14/26 because the parties were set
9 for Mandatory Settlement Conference (MSC) on 7/10/26.

10 17) On 7/10/26, the parties appeared at MSC but did not reach an agreement.

11 18) On 7/14/26, the Court continued the matter to 8/13/26 on the Court's own motion.

12 19) On 8/3/26, Petitioner filed a declaration asserting that the matter should be set for trial and the
13 Court agreed that the matter should be set for trial at the prior 5/7/25 hearing. Petitioner attached
14 the transcript wherein the Court states its intent to set the matter for trial if the parties do not
15 reach a settlement.

16 20) On 8/3/26, Petitioner filed an updated Income and Expense Declaration.

17 21) On 8/3/26, Respondent filed a declaration regarding Petitioner's available income and ability to
18 pay temporary spousal support and the commencement date of temporary spousal support.

19 22) On 8/3/26, Respondent filed an updated Income and Expense Declaration.

20 **B. Findings and Order**

21 1) **The parties are ordered to appear** and shall be prepared to: (a) discuss their time estimate for
22 trial (i.e., number of days); and (b) inform the Court of the proposed number of witnesses they
23 intend to present.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BINH THAI NGUYEN,

Petitioner

VS.

LORNA BUGARIN VILLA,

Respondent

) Case Number: FDI-25-801846

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

PROVE-UP HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CELIA LUCRECIA N. VASQUEZ CANDELL,	)	Case Number: FDI-25-802072
Petitioner	)	Hearing Date: August 13, 2026
VS.	)	Hearing Time: 9:00 AM
BYRON A. IXCAL AVILA,	)	Department: 403
Respondent	)	Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL SUPPORT

TENTATIVE RULING

The matter was continued by agreement of the parties. **No appearances are required on 8/13/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TIMOTHY WARGO,

Petitioner

VS.

CHRISTOPHER NELSON,

Respondent

) Case Number: FDI-25-802354

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Timothy Wargo and Respondent Christopher Nelson.
- 2) Per the Petition for Dissolution (filed 12/18/25) and Response and Request for Dissolution (filed 4/13/26), the parties married on 6/3/05 and separated on 12/17/25 for a marriage of 20 years and 6 months. There are no minor children subject to this proceeding.
- 3) On 7/13/26, Respondent filed a Request for Order seeking temporary monthly spousal support and \$7,500 in attorney's fees and costs pursuant to Family Code section 2030. Petitioner asserts he is disabled and unemployed and the \$4,719 Petitioner voluntarily pays him in support is not enough to meet his monthly expenses.
- 4) On 7/13/26, Respondent filed an Income and Expense Declaration indicating he earns \$0 in average monthly income and pays \$6,100 in average monthly expenses.
- 5) On 7/31/26, Petitioner filed a Responsive Declaration. Petitioner agrees to pay Respondent guideline temporary monthly spousal support, which Petitioner asserts he has been voluntarily paying Respondent. Petitioner requests the Court order: (a) Petitioner to pay Respondent \$4,719

in guideline temporary monthly spousal support in accordance with the XSpouse report attached as Exhibit 2; (b) Petitioner to contribute \$4,000 to Respondent's attorney's fees and costs; and (c) reservation of jurisdiction over Petitioner's claim for reimbursement for any overpayment of temporary support already paid (Petitioner asserts he voluntarily paid Respondent's living costs at \$6,259 per month for over six months).

6) On 7/31/26, Petitioner filed an Income and Expense Declaration.

B. Findings and Order

- 1) Respondent's request for guideline temporary monthly spousal support is GRANTED.
- 2) The Court finds good cause to adopt Petitioner's proposed XSpouse calculation attached as Exhibit 2 to Petitioner's Responsive Declaration filed 7/31/26 (and attached hereto).
- 3) As such, Petitioner shall pay Respondent \$4,719 in guideline temporary monthly spousal support on the 1st of every month, effective 7/13/26. The Court finds there are no arrears due and owing to Respondent as it is undisputed that Petitioner has been voluntarily paying Respondent's expenses.
- 4) The Court reserves jurisdiction over Petitioner's claim for reimbursement for any overpayment of temporary support Respondent voluntarily paid.
- 5) Respondent's request for Family Code section 2030 attorney's fees and costs is GRANTED in the amount of \$5,000.
- 6) The Court finds an award of attorney's fees and costs is appropriate here because there is a demonstrated disparity between the parties in access to funds to retain counsel and in the ability to pay for legal representation.
- 7) The Court further finds that Petitioner has or is reasonably likely to have the ability to pay \$5,000 towards Respondent's legal representation while maintaining his own.
- 8) Finally, \$5,000 in attorney's fees and costs is reasonable and necessary based on the facts and equities of this case.
- 9) Petitioner shall pay this balance in full by 9/13/26.
- 10) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule

1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within
3 10 days may allow the other party to prepare a proposed order and submit it to the court in
4 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Party A	Party B	Monthly figures	CASH FLOW	
#of children	0	0	2026		
% time with NCP	0.00 %	0.00 %		Combined net spendable	11509
Filing status	SINGLE	SINGLE	Nets(adjusted)		
# exemptions	1 *	1 *	Party A	Party A	
Wages+salary	12479	0	Party B	Payment Cost/Benefit	-4281
Self-employed income	0	0	Total	Net spendable income	6905
Other taxable income	3595	0		Federal income tax	2660
TANF+CS received	0	298	Support	Federal employment tax	955
Other nontaxble income	0	0	Addons	State income tax	303
New spouse income	0	0	Guideln CS	State employment tax	150
401(k) employee contrib	618	0	S.Clara SS	Total taxes	4067
Adjustments to income	0	0	Total	Federal filing status	SINGLE
SS paid prev marriage	0	0		State filing status	SINGLE
CS paid prev marriage	0	0	Settings changed		
Health insurance	382	0		Party B	
Other medical expense	0	0		Payment Cost/Benefit	4603
Property tax expense	0	0		Net spendable income	4603
Ded interest expense	0	0		Federal income tax	0
Contribution deduction	0	0		Federal employment tax	0
Misc tax deductions	0	0		State income tax	116
Qual bus income ded	0	0		State employment tax	0
Required union dues	0	0		Total taxes	116
Mandatory retirement	0	0		Federal filing status	SINGLE
Hardship deduction	0 *	0 *		State filing status	SINGLE
Other GDL deductions	0	0			
Child care expenses	0	0			

Party A pays spousal support

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YU JING TAN,

Petitioner

VS.

ZHONGGUAN HUANG,

Respondent

) Case Number: FDI-26-802836

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF REQUEST FOR ORDER: CUSTODY AND/OR VISITATION
(ORDERS) CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Yu Jing Tan (Mother) and Respondent Zhongluan Huang (Father). They share one minor child: Charlotte Huang (DOB: 12/26/24).
- 2) On April 7, 2026, Mother filed a Request for Order seeking initial orders for child custody and visitation.
- 3) On June 8, 2026, the Court conducted a “Readiness” hearing and referred the parties to FCS Mediation to occur on July 17, 2026 and set a return hearing for August 13, 2026.
- 4) On July 17, 2026, the parties attended FCS Mediation and stipulated to the following orders:
 - a. Joint Legal Custody;
 - b. The parties shall enroll in Kids Turn co-parenting class.
 - c. The parties shall enroll in co-parenting therapy. The parties shall meet and confer regarding selecting a therapist.

1 5) On July 22, 2026, Father filed a Responsive Declaration, which has been read and considered by
2 the Court.

3 6) On August 3, 2026, Mother filed a Reply, which has been read and considered by the Court.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.

9 2) The parties shall share joint legal and joint physical custody of the minor child.

10 3) Each parent must notify the other of the name and address of each health practitioner who
11 examines or treats the child. Such notification shall be made at the time the examination or
12 procedure is scheduled. Such notification is required unless examination or treatment is a result
13 of a medical emergency. In such emergency situations, the parent taking the child in for an
14 emergency procedure must notify the other parent while they are on their way to the treating
15 professional's medical facility.

16 4) The parenting time with each parent shall be two days (48 hours) on and two days (48 hours) off
17 and continue to rotate thereafter. The parenting time will commence with Mother having the
18 minor child from 5:00 p.m., on Thursday, August 13, 2026 through 5:00 p.m., on Saturday,
19 August 15, 2026. Father will then have care and custody of the minor child from 5:00 p.m., on
20 Saturday, August 15, 2026 through 5:00 p.m., on Monday, August 17, 2026. They will continue
21 to rotate caring for the minor child every 48 hours, until further order of the Court.

22 5) All existing orders, not in conflict with the orders made herein, shall remain in full force and
23 effect.

24 6) The parties are free to modify the parenting plan any way they see fit and in the minor child's
25 best interest, provided such agreement is memorialized in writing (i.e., text, email, or any other
26 form of writing).

27 7) Counsel for Mother shall prepare the Findings and Order After Hearing.

28 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
29 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within
4 10 days may allow the other party to prepare a proposed order and submit it to the court in
5 accordance with CA Rules of Court, Rule 5.125(d).
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